

1 ENGROSSED HOUSE
2 BILL NO. 2293

By: Hilbert of the House

3 and

4 Seifried of the Senate

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6
7 An Act relating to the Oklahoma Broadband Office;
8 amending Section 3, Chapter 229, O.S.L. 2022 (74 O.S.
9 Supp. 2025, Section 9202), which relates to the
10 Broadband Governing Board; extending date of
11 termination of Board; amending 17 O.S. 2021, Section
12 139.202, as amended by Section 4, Chapter 229, O.S.L.
13 2022, and as renumbered by Section 13, Chapter 229,
14 O.S.L. 2022 (74 O.S. Supp. 2025, Section 9203), which
15 relates to the Oklahoma Broadband Council; extending
16 date of termination of Council; amending Section 5,
17 Chapter 229, O.S.L. 2022, as amended by Section 1,
18 Chapter 336, O.S.L. 2023 (74 O.S. Supp. 2025, Section
19 9204), which relates to Oklahoma Broadband Office;
20 extending date of termination of Office; amending
21 Section 6, Chapter 229, O.S.L. 2022 (74 O.S. Supp.
22 2025, Section 9205), which relates to duties and
23 authority of the Oklahoma Broadband Office; extending
24 date of certain goal; and providing an effective
date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 3, Chapter 229, O.S.L.
2022 (74 O.S. Supp. 2025, Section 9202), is amended to read as
follows:

Section 9202. A. 1. There is hereby created until ~~June 30,~~
~~2028~~ December 31, 2030, the Broadband Governing Board. The Board

1 shall oversee the Oklahoma Broadband Office. Effective ~~June 30,~~
2 ~~2028~~ December 31, 2030, the Board shall terminate. The Board shall
3 utilize the year prior to the termination date for the purpose of
4 ceasing the Board's affairs.

5 2. The Board shall receive regular reports from the Office's
6 Executive Director and the Executive Director's staff on the status
7 of the Statewide Broadband Plan, the State Broadband Grant Program,
8 other developed grant programs, and other projects the Office is
9 undertaking, during regularly scheduled meetings.

10 B. The Board shall consist of nine (9) members. Two members
11 shall be appointed by the Speaker of the Oklahoma House of
12 Representatives, two members shall be appointed by the President Pro
13 Tempore of the Oklahoma State Senate, three members shall be
14 appointed by the Governor, one member shall be the Lieutenant
15 Governor, and one member shall be the State Treasurer. Except as
16 provided in subsection C of this section, appointees shall serve
17 until ~~June 30, 2028~~ December 31, 2030. No individual with an
18 official affiliation, paid or unpaid, with any potential recipient
19 of a grant administered under the provisions of this act, shall be
20 appointed to or serve on the Board.

21 C. Each appointee shall serve at the pleasure of his or her
22 appointing authority and may be removed or replaced without cause.

23 D. 1. The Board shall hold an organizational meeting not later
24 than thirty (30) days from the effective date of this act. At such

1 meeting, the Board shall adopt qualifications and a salary range for
2 an Executive Director for the Oklahoma Broadband Office based on the
3 recommendations of the Human Capital Management Division of the
4 Office of Management and Enterprise Services, and provide for the
5 process of filling the position in a reasonable time in accordance
6 with the laws of this state.

7 2. The Board shall hold meetings as necessary at a place and
8 time to be fixed by the Board. The Board shall elect, at its first
9 meeting, one of its members to serve as chair and another of its
10 members to serve as vice-chair. At the first meeting in each
11 calendar year thereafter, the chair and vice-chair for the ensuing
12 year shall be elected. Special meetings may be called by the chair
13 or by five members of the Board by delivery of written notice to
14 each member of the Board. A majority of members serving on the
15 Board shall constitute a quorum of the Board.

16 E. If a Board member is unable to fulfill his or her term for
17 any reason, the appointing authority of such member may appoint a
18 replacement to complete the remainder of the term.

19 F. The Board shall be subject to the Oklahoma Open Meeting Act
20 and the Oklahoma Open Records Act.

21 G. The Board shall employ, evaluate, and maintain an Executive
22 Director of the Office who shall serve at the pleasure of the Board
23 and may be removed or replaced without cause.

1 H. The Board shall promulgate rules as necessary to implement
2 the provisions of the Oklahoma Broadband Expansion Act and for the
3 governance and operation of the Oklahoma Broadband Office.

4 I. The Board shall approve or disapprove all grant and
5 incentive programs created by the Office under the provisions of
6 this act or under law.

7 J. The Board shall oversee the annual budget for the Office,
8 which shall be funded from the allowed administrative expenses of
9 applicable federal programs and funds available for expenditure from
10 the State Broadband Grant Program Revolving Fund created pursuant to
11 ~~Section 10 of this act~~ 9209 of this title.

12 K. The Board shall approve the Statewide Broadband Plan and
13 updates to the Plan as necessary.

14 SECTION 2. AMENDATORY 17 O.S. 2021, Section 139.202, as
15 amended by Section 4, Chapter 229, O.S.L. 2022, and as renumbered by
16 Section 13, Chapter 229, O.S.L. 2022 (74 O.S. Supp. 2025, Section
17 9203), is amended to read as follows:

18 Section 9203. A. There is hereby created, until ~~June 30, 2028~~
19 December 31, 2030, the Broadband Expansion Council. Effective ~~June~~
20 ~~30, 2028~~ December 31, 2030, the Council shall terminate. The
21 Council shall utilize the year prior to the termination date for the
22 purpose of ceasing the Council's affairs.

23 B. The Council shall consist of fourteen (14) persons to be
24 selected as follows:

1 1. Three members shall be appointed by the Governor, one of
2 whom shall be the individual serving as the Executive Director of
3 the Oklahoma Broadband Office, one of whom shall be a current or
4 past mayor of a municipality having a population of less than
5 thirty-five thousand (35,000) persons according to the latest
6 Federal Decennial Census or most recent population estimate and
7 which is not part of either the Oklahoma City or Tulsa Metropolitan
8 Statistical Areas, and one of whom shall be a resident of this state
9 and a wireless Internet service provider (WISP);

10 2. Five members shall be appointed by the Speaker of the
11 Oklahoma House of Representatives, one of whom shall represent the
12 interests of rural Internet service providers, one of whom shall be
13 a private sector technology professional with expertise in broadband
14 connectivity, access, price and related economic factors, one of
15 whom shall represent the interests of rural health care, one of whom
16 shall be a representative of a wireless telecommunications provider
17 not affiliated with an incumbent local exchange carrier in Oklahoma
18 and one who shall be a representative of a wireless
19 telecommunications provider with operations in Oklahoma and at least
20 twenty-four other states;

21 3. Five members shall be appointed by the President Pro Tempore
22 of the Oklahoma State Senate, one of whom shall be a professional
23 having academic expertise in large-scale information technology
24 infrastructure with emphasis on rural broadband access, one of whom

1 shall represent the interests of rural business enterprises, one of
2 whom shall be a citizen from a community of less than fifty thousand
3 (50,000) persons which is not part of either the Oklahoma City or
4 Tulsa Metropolitan Statistical Areas, one of whom shall be a rural
5 electric cooperative representative and one who shall be an Oklahoma
6 resident and Tribal Leader of a tribe recognized in this state; and

7 4. One nonvoting member to be selected by the Oklahoma
8 Corporation Commission who has expertise in administration of the
9 Universal Service Fund, but who is not an elected member of the
10 Commission.

11 C. A quorum of the membership of the Council shall be necessary
12 in order to take any final action pursuant to the provisions of this
13 act.

14 D. The Council shall be subject to the Oklahoma Open Meeting
15 Act and the Oklahoma Open Records Act.

16 E. The Council shall serve as the advisory board to the
17 Oklahoma Broadband Office.

18 F. The Council shall advise the Office in developing and
19 continually monitoring the Office's Plan related to:

20 1. Identifying geographic areas to be utilized in developing
21 the Office's policies for establishing or improving broadband access
22 in the state pursuant to the Oklahoma Broadband Expansion Act;

23 2. Assessing the financial viability of broadband service
24 providers so that a broadband network is adequately supported in its

1 operations, that needed repairs and upgrades can be undertaken on a
2 timely basis and that the goal of having a quality long-term
3 broadband service delivery system across the state is achieved and
4 maintained;

5 3. Maintaining the viability of the Oklahoma Universal Service
6 Fund and give consideration to whether similar universal funds
7 should be implemented in order to facilitate broadband expansion and
8 operational costs for underserved areas; and

9 4. Preventing duplication of facilities and investment when the
10 Office makes grant recommendations. With the input of the Council,
11 the Oklahoma Broadband Office shall establish objective standards in
12 order to determine whether the construction of broadband access
13 constitutes duplication of facilities and investment and also the
14 role of any recommended incentives that would benefit entities in
15 the private sector so that public resources are effectively utilized
16 and that duplication of efforts is avoided.

17 G. The Council shall receive administrative support from the
18 Oklahoma Broadband Office.

19 SECTION 3. AMENDATORY Section 5, Chapter 229, O.S.L.
20 2022, as amended by Section 1, Chapter 336, O.S.L. 2023 (74 O.S.
21 Supp. 2025, Section 9204), is amended to read as follows:

22 Section 9204. A. There is hereby created until ~~June 30, 2028~~
23 December 31, 2030, the Oklahoma Broadband Office, to serve as the
24 state's sole administrator of the functions, powers, and duties

1 assigned to the Office in the Oklahoma Broadband Expansion Act or
2 under law. Effective ~~June 30, 2028~~ December 31, 2030, the Office
3 shall terminate and all personnel positions shall be abolished. The
4 Office shall utilize the year prior to the termination date for the
5 purpose of ceasing the Office's affairs.

6 B. The Office shall receive administrative assistance from the
7 Office of Management and Enterprise Services (OMES), which shall
8 provide, through existing OMES resources, administrative assistance
9 upon request in writing or electronic correspondence from the
10 Office's Executive Director. OMES shall provide assistance in the
11 manner requested within thirty (30) days of determination by the
12 Agency that the request is able to be fulfilled. If for any reason
13 the request cannot be fulfilled within thirty (30) days, the Office
14 and OMES shall enter into a written agreement expressing an agreed
15 upon timeline for fulfilling the needs of the Office. In the event
16 that the request cannot be fulfilled, OMES shall respond in writing
17 within ten (10) days of the request providing the reasoning for
18 denial. If the request cannot be fulfilled utilizing existing
19 resources, OMES may charge the Office for the actual cost to fulfill
20 the request.

21 C. The Office shall be governed by the Broadband Governing
22 Board, created pursuant to Section 9202 of this title.

23 D. The Office shall be advised by the Broadband Expansion
24 Council, created pursuant to Section 9203 of this title.

1 E. The Office shall have an Executive Director who shall
2 oversee the operations of the Office including, but not limited to:

3 1. Overseeing the creation, maintenance, and completion of the
4 Statewide Broadband Plan;

5 2. Communicating the state's progress in achieving the goals
6 and implementation of the Statewide Broadband Plan;

7 3. The creation, housing, and updating of a statewide broadband
8 services map;

9 4. Overseeing of grant applications and awards for connectivity
10 and affordability projects;

11 5. Making recommendations to the Board regarding procedural and
12 administrative rules for the Office; and

13 6. Employment and management of Office staff subject to the
14 limitations and requirements of the Oklahoma Broadband Expansion Act
15 and subject to the limitations and requirements of the Broadband
16 Governing Board.

17 F. The Executive Director shall regularly report to the Council
18 and the Board and shall submit an annual report to the Office of the
19 Speaker of the House of Representatives and the Office of the
20 President Pro Tempore of the Senate.

21 G. The Office may hire legal counsel as it is deemed necessary
22 by the hiring entity. The Office shall be subject to the provisions
23 of Section 20i of this title.
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1 SECTION 4. AMENDATORY Section 6, Chapter 229, O.S.L.
2 2022 (74 O.S. Supp. 2025, Section 9205), is amended to read as
3 follows:

4 Section 9205. A. The Oklahoma Broadband Office shall:

5 1. Conduct a study of and continually monitor broadband access
6 in the state to assess:

- 7 a. existing capabilities to access broadband
- 8 telecommunication services,
- 9 b. the costs of obtaining broadband services from
- 10 existing providers,
- 11 c. the estimated cost to improve broadband access, and
- 12 d. the likelihood of changes in broadband access in the
- 13 near and intermediate future based on available
- 14 information regarding public and private programs to
- 15 enhance access and adoption; and

16 2. Maintain, update, and execute the Statewide Broadband Plan
17 as necessary.

18 B. The Office shall incorporate the information as described in
19 subsection A of this section into a mapping system that depicts
20 resources, broadband coverage, connectivity speeds, and other such
21 features as the Office deems relevant. The Office may also purchase
22 data sets it deems necessary to complete such mapping system.

23 C. The Office shall establish policies and regulations as may
24 be necessary to implement the provisions of this act.

1 D. The Office shall establish policy as needed to implement a
2 process whereby impacted parties may challenge or protest data and
3 information published on the Office's mapping system. The process
4 shall include, but not be limited to, features that:

- 5 1. Are heard and ruled on at the Office level;
- 6 2. Provide for a ruling by the Office within sixty (60) days of
7 the submitted challenge or protest; and
- 8 3. Upon successful protest action, result in a timely
9 correction of the map.

10 E. The Office shall perform and maintain a study of existing
11 grants, incentives, and programs that may improve physical access to
12 broadband along with adoption of broadband technologies. The
13 grants, incentives, and programs may include federal funds, state
14 funds or resources, tribal funds or resources, donated funds, or
15 funding available from foundations, endowments or similar resources,
16 state or local tax incentives, state or local financing incentives
17 or options, or federal, tribal, state or local regulatory policies
18 that would be conducive to improving existing broadband access or
19 establishing access where it does not currently exist. The Office
20 shall regularly report on the currently available grants,
21 incentives, and programs and how best to utilize each.

22 F. The Office shall create, and update no less than biannually,
23 a Statewide Broadband Plan. The Plan shall detail what areas are
24 served, underserved, or unserved according to the prevailing

1 definitions of the FCC, and how best to improve the infrastructure
2 and connectivity in underserved and unserved areas. The Plan shall
3 include, but shall not be limited to, detailing a pathway for
4 ninety-five percent (95%) of the state's population to be adequately
5 served by ~~June 30, 2028~~ December 31, 2030.

6 G. The Office shall create the Capital Projects Fund Grant
7 Report or provide the necessary information to the state entity
8 drafting the Report. The Report shall be submitted to the
9 Department of the Treasury no later than September 24, 2022. The
10 Office shall maintain the Report and submit any and all additional
11 information as required. The Office shall work with the Joint
12 Committee to ensure all approved broadband projects utilizing funds
13 from the Capital Projects Fund follow the correct reporting
14 requirements based on Department of Treasury guidance.

15 H. Additionally, the Office is authorized to seek, apply for,
16 and administer funding through grant opportunities. The Office is
17 also authorized to administer grant funding awards to recipients and
18 subrecipients.

19 I. On or before October 31, 2022, the Office, with the advice
20 of the Council, shall develop a set of broadband grants or incentive
21 awards guidelines to be approved by the Board. The grants and
22 incentive awards shall be for unserved and underserved areas. The
23 Office shall submit a copy of the guidelines to the Office of the
24 Speaker of the Oklahoma House of Representatives, the Office of the

1 President Pro Tempore of the Oklahoma State Senate, and to the
2 offices of the chairs of the appropriate legislative committees.

3 The guidelines shall:

4 1. Consider a weighted approach for awards based upon the
5 following:

6 a. the area's need for services, including, but not
7 limited to, whether the area is underserved or
8 unserved,

9 b. whether there are existing broadband assets in the
10 area, based on the statewide map,

11 c. whether existing federal, state, local, tribal, or
12 private resources have been allocated to broadband
13 services in the area,

14 d. a preference for federal, state, local, tribal, or
15 private partnerships, and

16 e. the capacity of the provider to maintain assets for an
17 extended period of time;

18 2. Recommend any necessary controls including, but not limited
19 to, capping the dollar amount of awards, allowing for an auditing
20 process, and a process that allows for award clawbacks. These
21 controls shall be in place to ensure the maximum efficiency of the
22 incentive award and to protect against waste, fraud, or abuse; and

23 3. Include annual reporting requirements of award recipients to
24 assess effectiveness of such incentives which shall include, but not

1 be limited to, changes in coverage resulting from implementing
2 awarded grants and incentives.

3 SECTION 5. This act shall become effective November 1, 2026.

4 Passed the House of Representatives the 10th day of March, 2026.

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Passed the Senate the _____ day of _____, 2026.

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Presiding Officer of the House
of Representatives

Presiding Officer of the Senate